

		County Sheriff's Department in the amount of \$1,023.29 is not exempt and thus the claim of exemption is DENIED. At the hearing on a claim of exemption, the court must make an order determining whether the property is exempt, in whole or in part. (Code Civ. Proc., § 703.580, subds. (c), (d)(1).) The court clerk must promptly transmit a certified copy of the order to the levying officer, whereupon the levying officer must release the property or apply it to satisfy the judgment in compliance with the order. (Code Civ. Proc., § 703.580, subd. (e).) The claimant bears the burden of proof at the hearing on the exemption claim. (Code Civ. Proc., § 703.580, subd. (b); <i>O'Brien v. AMBS Diagnostics, LLC</i> (2016) 246 Cal.App.4th 942, 948.) The exemption statutes, however, are liberally construed in favor of the claimant. (<i>Independent Bank v. Heller</i> (1969) 275 Cal.App.2d 84, 88.) Here, Debtor fails to cite any statutory provision supporting his claim of exemption and simply states his personal income is needed to pay rent, food, and other living expenses. He states no facts in support of his claim of exemption other than numbers set forth in in financial statement attached to the claim of exemption. To the extent Debtor relies on Code of Civil Procedure section 704.070, which exempts earnings paid to the judgment debtor within 30 days before a writ of execution is levied, Debtor fails to trace any funds claimed to be exempt based on their origin. (Code Civ. Proc., § 703.080, subd. (b).) To the extent he relies on Code of Civil Procedure section 704.225, which exempts money in the judgment debtor's deposit account to the extent necessary for the support of the judgment debtor (and spouse/dependents, if any), Debtor failed to show the funds currently being held by the Sheriff are necessary for his support. Indeed, Debtor's financial statement states his monthly take home income exceeds his monthly expenses by \$452 and he identifies a brokerage account with \$26,000 and a checking account with \$5,000 separate and apart from the \$59,000 he identifies in "Managed Retirement." Based on the foregoing, the claim of exemption is DENIED. Creditor's counsel shall give notice of this ruling.
14.	<i>Kurtin vs. Elieff</i>	Before the court is the motion of plaintiff Todd Kurtin (Plaintiff) for an award of attorney fees on appeal, filed on January 6, 2020 (ROA 2927). A status conference also is on

	2007-00100307	calendar relating to the bankruptcy petition filed by defendant Bruce Elieff (Defendant). Based on the declaration of Plaintiff's counsel, Benjamin Sosnick, filed on July 30, 2026, as ROA 3132, the stay of this matter must remain based upon the pendency of Defendant's bankruptcy petition. The motion and the status conference therefore are CONTINUED TO THURSDAY, FEBRUARY 4, 2027, AT 2:00 P.M., IN DEPARTMENT C23. Plaintiff's counsel is ordered to file a declaration regarding the status of Defendant's bankruptcy proceeding no later than 10 court days before the continued hearing date which should include information regarding the stage of the proceedings, upcoming hearings, and any estimate regarding resolution. Assuming the stay is lifted, the attorney fee motion likely will not proceed on the February 4, 2027, but rather will be set for a future hearing date and the possibility of further briefing, if necessary. Plaintiff's counsel is further ordered to give notice of this ruling.
15.	<i>Family Investment Company, Inc. vs. Mach-1 Autogroup</i> 2009-00126504	Before the court are the following two motions filed on April 17, 2026: (1) motion by judgment debtor Marc Spizzirri (Marc) to quash purported deposition subpoena on third party Glass Ratner Advisory & Capital Group, LLC (Glass Ratner); request for monetary sanctions, and (2) motion by judgment debtor Candace Spizzirri (Candace; together with Marc collectively referred to as Judgment Debtors) to quash purported deposition subpoena on third party Gnome Road Publishing (Gnome Road); request for monetary sanctions. As more fully set forth below, both motions are GRANTED and the subpoenas served on Glass Ratner and Gnome Road are ordered QUASHED. Judgment Debtors are correct the subpoenas at issue, which are for pre-trial discovery, were not properly issued in this post-judgment context. The Civil Discovery Act applies to discovery in postjudgment enforcement proceedings only to the extent provided in Code of Civil Procedure sections 708.110 to 708.130. (<i>Shrewsbury Mgmt., Inc. v. Superior Court</i> (2019) 32 Cal.App.5th 1213, 1223.) Under section 708.130, that includes the use of a subpoena duces tecum to access relevant documents, in the same manner as at trial. (<i>Id.</i> at pp. 1223-1225.) But the subpoenas at issue are not subpoenas for trial – they are for pre-trial discovery. (ROAs 2031 and 2032, at Exh. 1.) As they fail to meet the requirements under Code of Civil Procedure section 708.030, they are invalid here.